

SENATE BILL 502

By Haile

AN ACT to amend Tennessee Code Annotated, Title 63,
Chapter 24 relative to athletic trainers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-24-101, is amended by deleting the section and substituting:

As used in this chapter:

(1) "Athletic injury" means any injury or condition that limits or prevents a person's participation in exercises, sports, games, or recreation, or other activities requiring physical strength, agility, flexibility, range of motion, speed, or stamina or a condition that prevents the person from participating in such activities;

(2) "Athletic trainer" means a healthcare provider with the qualifications prescribed in this chapter who, upon the advice, consent, and oral or written prescriptions or referrals of a physician licensed under this title, carries out the practice of prevention, recognition, evaluation, management, disposition, treatment, or rehabilitation of athletic injuries, and, in carrying out such functions is authorized to use manual techniques; physical modalities, such as heat, light, sound, cold, electricity, or therapeutic devices; and healthcare procedures related to prevention, recognition, evaluation, management, disposition, rehabilitation, and treatment; athletic trainers shall practice only in areas they are competent, by reason of training or experience that can be substantiated by records or other

evidence deemed acceptable by the board in the exercise of the board's discretion;

(3) "Board" means the board of athletic trainers;

(4) "Board of Certification" or "BOC" means the Board of Certification for the Athletic Trainer, Inc.; and

(5) "Healthcare procedures" means a course of action intended to achieve a result in the delivery of health care, including rectal core thermometer administration, blood glucose monitoring, injection administration, wound closure, dry needling application, and intravenous fluid administration.

SECTION 2. Tennessee Code Annotated, Section 63-24-103, is amended by deleting the section and substituting:

(a) A person shall not represent themselves or claim to be an athletic trainer or perform any of the activities of an athletic trainer without first obtaining a license under this chapter.

(b) This chapter does not prevent a person from serving as an athletic training student, or a similar position if such service is not primarily for compensation and is carried out under the supervision of a licensed athletic trainer and a physician licensed under chapter 6 or chapter 9 of this title. Such supervision must be provided under the guidelines of the Board of Certification and approved by the board.

SECTION 3. Tennessee Code Annotated, Section 63-24-104(a)(2), is amended by deleting the subdivision and substituting:

(2) Satisfactorily completed all of the Board of Certification qualifications and be certified as an athletic trainer in good standing by the BOC and approved by the board.

SECTION 4. Tennessee Code Annotated, Section 63-24-104(b), is amended by deleting the language:

An out-of-state applicant from a state not having a licensure or certification act will be eligible to take the jurisprudence examination if certified by the NATA Board of Certification, Inc., and approved by the board.

and substituting:

An out-of-state applicant from a state not having a current licensure or certification act or an expired license or certificate in good standing at time of expiration will be eligible to take the jurisprudence examination if certified by the Board of Certification and approved by the board.

SECTION 5. Tennessee Code Annotated, Section 63-24-105(a)(2), is amended by deleting the subdivision and substituting:

(2) The applicant is entitled to an athletic trainer's license if the applicant possesses the qualifications enumerated in § 63-24-104; completes and passes the certification requirements and examination of the Board of Certification or its equivalent as determined by the board; completes the jurisprudence examination administered and selected by the board, to its satisfaction; pays the licensure fee as prescribed in § 63-24-106; and has not committed an act that constitutes grounds for denial of a license under § 63-24-107.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.